WHMIS

WHMIS - Education and Training

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Important Information

Canada has aligned the Workplace Hazardous Materials Information System (WHMIS) with the Globally Harmonized System of Classification and Labelling of Chemicals (GHS).

This document discusses the WHMIS supplier requirements as regulated by federal legislation – the *Hazardous Products Act* (HPA) and the *Hazardous Products Regulations* (HPR). This document reflects the *Hazardous Products Regulations* requirements as of December 15, 2022.

Health Canada is the government body responsible for the overall WHMIS supplier-related laws. WHMIS is also regulated in the workplace by the provinces, territories and federal governments (for federally regulated workplaces) under their occupational health and safety legislation. The province or territory determines the WHMIS education and training requirements. While these jurisdictions based their WHMIS regulations on the common model, small variations between jurisdictions may exist.

Suppliers and employers must use and follow the WHMIS requirements for labels and safety data sheets (SDSs) for hazardous products sold, distributed, or imported into Canada.

Please refer to the following OSH Answers documents for more information about WHMIS:

- WHMIS – General
- WHMIS – Pictograms
- WHMIS – Labels
- WHMIS – Hazard Classes and Categories
- WHMIS – Safety Data Sheets (SDSs)
- WHMIS – WHMIS Program
- WHMIS – Glossary
- WHMIS – Confidential Business Information (CBI)
- WHMIS – Variances
- WHMIS – Laboratories
- WHMIS - Information for Suppliers and Importers
- WHMIS - Legislation

Is there a difference between WHMIS education and WHMIS training?

Yes. Education and training can be thought of as two separate parts.

- **Education** refers to general or portable information, such as how WHMIS works and the hazards of the products. For example, you will learn about the hazard classes (e.g., why a product is called a corrosive, and what information you can find on labels and safety data sheets (SDSs)).
- **Training** refers to the site- and job-specific information that will cover your workplace's procedures for storage, handling, use, disposal, emergencies, spills, and what to do in other situations.

Who should receive this education and training?

In Canada, any work place where hazardous products are present must have a WHMIS program. Workers must be educated and trained to understand the hazards and know how to work safely with hazardous products.

All workers who work with a hazardous product or who may be exposed to a hazardous product as part of their work activities must learn about the hazard information for these products. The hazard information should include the information received from the supplier and any other information that the employer is aware of about the use, storage, and handling of each product.

As an example, this education and training must be provided to all workers who:

- May be exposed to a hazardous product due to their work activities (including normal use, maintenance activities, or emergencies).
- Use, store, handle or dispose of a hazardous product.
- Supervise or manage workers who may be exposed, or use, store, handle or dispose of a hazardous product.
- Are involved in emergency response.

What topics should be covered?

Examples of topics that should be covered during education and training include:

- The information on both the supplier label and workplace label, and what that information means.
- The information on the safety data sheet (SDS) and what that information means.
- The procedures required for safe use, handling and disposal of a hazardous product.
- Any other procedures required when the product is in a pipe, piping system, vessel, tank car, etc.
- The procedure to follow if the hazardous product may be present in the air and a worker may be exposed.
- All procedures that must be followed in an emergency involving the hazardous product.

What are the employer's duties?

All Canadian jurisdictions require that employers develop, implement, and maintain a worker WHMIS education and training program. Workers who work with or may be exposed to hazardous products in the workplace must receive product-specific training.

The employer has the general responsibility to provide all the hazard information possible, either from the supplier or based on information the employer is, or ought to be, aware of.

Employers are also expected to consult with the health and safety committee (or representative) when developing, implementing, or reviewing the education and training programs.

In addition, the employer should review their overall WHMIS education and training program at least annually or more often if work conditions, processes, or hazard information change. This review should be done in consultation with the health and safety committee or a representative. Confirm these details with your local jurisdiction.

As an employer, how often do I need to provide refresher training?

Refresher education and training are generally required:

- As needed to protect the worker's health and safety.
- If conditions in the workplace have changed.
- If new products are introduced.
- If the products have changed and now have different hazards.
- When new hazard information becomes available.
- If there is new information about safe use, handling, storage or disposal.

It is possible that some provinces or territories may add a requirement for employers to periodically evaluate workers' knowledge using written tests, practical demonstrations or other means. Again, confirm these details with your local jurisdiction.

What are the workers' duties?

Workers must participate in the education and training sessions, and follow the safe work procedures established by their employer.

I am a worker. If I change employers, do I have to re-take WHMIS training?

It is up to the employer to decide. The general or "generic" part of your WHMIS education (such as how WHMIS works, the hazard classes, etc.) will apply in all workplaces. However, each workplace is different, and your potential exposure to hazardous products will vary. Employers must make sure that workers receive training that is specific to that workplace and to the work they will be performing. Employers may opt to refresh your generic WHMIS education at the same time.

Briefly, what does successful education and training look like?

Workers should be able to answer these questions for every hazardous product they work with:

- What are the hazards of the product?
- How do I protect myself from those hazards?
- What do I do in case of an emergency?
- Where can I get further information?

Who should provide the education and training?

The legislation places the obligation for education and training with the employer, and it outlines the minimum requirements for education and training. This education and training may be provided by the employer, or by a qualified or competent person or agency that the employer has chosen. Regardless of who delivers the education and training, employers remain legally responsible for ensuring the protection of workers.

Training providers would be considered qualified or competent based on having a suitable level of knowledge, skills, and abilities in the subjects they deliver. A provider should also be competent in delivery techniques and methods, especially those methods appropriate for adult education, when delivering training in a workplace.

The employer should confirm the training provider's qualifications and abilities to meet the training course objectives and the needs of the trainees.

I am an employer and I received a call from a training agency stating that, for a fee, they will provide WHMIS training as required by law. They also stated that we do not currently comply with WHMIS. Are we obligated to follow their program?

Some jurisdictions have reported that employers have been contacted by external companies that use high-pressure sales tactics. Notices from these jurisdictions remind employers that they have a choice when deciding on an external training provider. The goal is to provide education and training that suits both the general education and work-site-specific training information you need for hazardous products and the procedures used at your workplace.

Fact sheet last revised: 2026-05-28

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